No. 2. Amoy, August 8th 1864.

Your Excellency:

I arrived in Hong Kong on the 1st inst., and at once placed myself in communication with the Consul there. He appeared to be somewhat embarrassed in getting information through Chinese sources, from his ignorance of the Chinese spoken language. It being very important to know something of the preparations which the Chinese are making at Canton, I directed the officer who had accompanied me from Tokei, to

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proceed to that place, ascertain
dee be cored, and report to me
in Chuny at the end of the
present week.

On my way to Chuny I
stopped at Swatow, and there
saw landed from the steamer
I was on several thousand stands
of arms, which I understood
were the complement of twenty
thousand stands which the Chinese
had purchased at Hong Kong
some time previously. Mr. Stevens,
an American gentleman living
at this place, tells me that
about a month ago, when the
Chinese officials requested him
to try and induce me to enter
their service, they negociated
with him for the purchase
of seven thousand stands of

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arms; but the negociations fell
through, as they could not agree
upon the price. The arms were
subsequently purchased from other
parties, but they were of an
inferior quality.

From Canton to Foochow
heavy requisitions for money
are being levied upon the
people. One rich Swatow mer-
chant, who refused to contribute
in this matter a hundred
thousand dollars, was tried on
a fictitious charge of piracy
said to have happened ten
years ago, and was convicted,
beheaded and his property
confiscated. The authorities do
not conceal their reasons for
thus obtaining money from
the people. They say that they

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are preparing to resist an invasion by the Japanese, against whom a deep feeling of hatred is thus engendered among the native population. The mass of the Chinese, however, are not for war, which they dread; and in the towns of the sea-shore the fear amongst the wealthy people is so great that at night they withdraw from their homes and retire some distance into the country, returning to their business the next morning.

Mr. Giquel, I am informed by the French consul, has gone to Shanghai to aid in the manufacture of torpedoes and other engines of destruction. So long as war has not

actually been declared, he will continue to help them. One of his officers, Mr. de Segonzac, is in Formosa, organizing and drilling troops.

Some time ago it was said in one of the Yamens at this port that all their preparations would be completed in two months from the first of August. By that time the monsoon will have changed, and all the ports of Southern Formosa will be accessible to transports. Thus is explained the inaction of the Chinese fleet at Canton, of which the following is the list: —

Name.	Tons.	Guns.	Commander.
Ang Lan	431	7	J. Goddle
Chen-to	431	7	Geo. Robertson
Chen-pei	28	1	Poynter
Ching-king	150	4	F. Bessard
Chun-hai	230	6	C.F. Deuce
Fei-ho	300	5	Clayton
Fei-long	120	5	W.J. Wright
Kien Wee	450	...	...
Ling Feng	300	5	Cocker
Ngan-tien	140	1	Wm Stewart
Peng-chao-hai	200	7	Palmer
Sui-taing	280	5	James Stewart
Sun-chi	150	5	Sharp
Ta-an-lan (150 h.p.)	700	7	Leo Buch
Tien-po	150	6	C. DeLongueville
Wan-ngan-taing	800	7	Chong Fa
Wing Po (180 h.p.)	600	3	Lam Man Wo
Yeung Po No 12	900	7	Sun Chun Fat

Although this fleet will, be-
of little avail to the Chinese

after war has been declared,
from the fact that most
of the foreign commanders
will not be allowed to
remain in the Chinese
service during war time
without forfeiting the pro-
tection of their governments
yet they have been en-
couraged to prepare them-
selves under the supposition
that the Japanese iron-
clads were unseaworthy,
a statement which was
published in the "Japan
Herald" and reproduced
in all the China pa-
papers, as you may see
from the following cutting
taken from a Hong Kong
paper.

NAVAL FORCES OF JAPAN.

We are enabled to give the following particulars about the Japanese navy, taken from a statement which was drawn up by a competent authority, about the end of last year :—

Rio-jio-kan, wooden corvette, screw steamer, 280 horse power, length 215 feet, greatest breadth 33 feet, draught 17½ feet. Protected by a girdle of 4 inch iron plates 3½ feet above and 4 feet under the waterline, about 15 feet foro and aft being without armour. Carries 12 cast iron rifled guns, muzzle loaders, 10 of which have a calibre of 5½ inches and 2 of 6½ inches. The greatest speed of this vessel is 9 knots, and for this reason, as well as for the insufficiency of its armour, it may be a match for a wooden vessel of the same strength, but would have no chance whatever against the most ordinary ironclad. This vessel visited Shanghai last year.

Nishin-kan, wooden corvette, screw steamer, 250 horse power, length 204 feet, greatest breadth 29 feet, draught 14 feet. Carries 6 cast iron guns of about 5½ inches, and 1 Armstrong muzzle loader of 7 inches. She is said to be a fast and serviceable vessel, and is, we believe, the one now in port.

Tsukuba-kan, wooden corvette, screw steamer, 200 horse power, length, 107 feet, greatest breadth 29½ feet, draught 15 feet. Carries 6 steel Armstrong guns of 5 inches, 2 cast iron guns of about the same calibre, and 2 smaller bronze guns of native fabrication. This vessel is very old and used up, her greatest speed not more than 6 knots.

Kusuga-kan, wooden paddle-steamer, 300 horse-power, length 243 feet, greatest breadth 27 feet, draught 11 feet. Carries 4 bronze guns of 5 inches, 2 cast iron guns of about the same calibre, and 1 Forbes gun of 7 inches.

Ho-shio-kan, compound system gunboat, screw steamer, 75 horse power, length 145 feet, greatest breadth 22½ feet, draught 7 feet. Carries 1 Armstrong breech-loader of 7 inches, one idem of 5½ inches and 2 small steel guns.

Mo-shium-kan, wooden gunboat, screw steamer, of about the same dimensions as the preceding. Carries 1 Forbes muzzleloader of 7 inches, 1 Armstrong muzzle loader of 5½ inches and 2 smaller Armstrong guns.

Dai-itchi-Teibo-kan or *Teibo I*, wooden gunboat, screw steamer, 60 horse power, length 132 feet, greatest breadth 22 feet, draught 7½. Carries 1 cast iron gun of 6½ inches, 1 Krupp gun of 5½ inches and 2 small steel guns.

Dai-ni-Teibo-kan or *Teibo II*, same construction and dimensions as the preceding. Carries 2 Armstrong muzzle loaders of 6½ inches and 2 small steel Forbes guns.

Un-yo-kan, wooden gunboat, screw steamer, about the same dimensions as the preceding. Carries 1 rifled muzzle loader of about 6 inches, 1 of about 5 inches and 2 small Armstrong guns.

Chiotogata-kan, small wooden gunboat, screw steamer of 40 horse power, carries 1 breechloader of 5½ inches and 2 small guns.

Kotets'en, ironclad ram, screw steamer with two propellers, 500 horse power, length 158 feet, greatest breadth 27, draught 13 feet. Carries three very large and two smaller guns. This ram is old and completely unseaworthy, in fact, last year, it was not considered as belonging to the active navy any more. As however it may perhaps still be fit for defending the entrance of a harbour, we have not felt justified in omitting it.

Latest advices from perfectly reliable sources fully confirm the unseaworthiness of this ram, and further inform us that the other so-called ironclad, the Rio-jio-kan is undergoing boiler repairs, which cannot be finished for a considerable time. The gunboats are said to be generally in good order.

The Japanese have moreover 5 or 6 transports, not at all or insignificantly armed; two of these are sailing vessels.

As we said at the beginning, these particulars have been taken from a statement drawn up at the end of last year, but they may stand even now, as we hear that no additions of any importance have been made to the Japanese navy since that time.

The actual strength of the active navy of Japan would therefore be as follows :—

Name.	Description.	Horse power.	Number of guns.	Number of crew.
Rio-jio-kan	Iron plated corvette, screw str.	280	12	275
Nishin ,,	Wooden corvette ,, ,,	250	7	145
Tsukuba ,,	,, ,, ,, ,,	200	10	150
Kasuga ,,	,, ,, paddle ,,	500	7	125
Ho-shio ,,	Compound system gunboat, screw steamer.	75	4	70
Moshium ,,	Wooden gunboat, screw str.	75	4	70
Teibo I	,, ,, ,, ,,	60	4	63
Teibo II	,, ,, ,, ,,	60	4	69
Un-yo-kan	,, ,, ,, ,,	60	4	65
Chiotogata-kan	,, ,, ,, ,,	40	3	55
Kotets'en	Iron clad ram, double screw ,,	500	5	135
Total 11		1900	64	1220

those who have first called upon me. The French Consul, who is very well acquainted with Captain Giquel, confirms the statement, previously made to me, that the organization of the Chinese forces can not possibly be perfected in less than two months. H. B. M.'s Consul, who called upon me this afternoon, is of the opinion that, should war be declared, and the Chinese forces meet with reverses, one of the most formidable insurrections that has ever broken out in Southern China will be organized in Kwang Tung, Fuh Kyen and Chekiang; and that even should they happen to meet with success

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at first, and yet their adversary should maintain a bold front and show evidences of their ability to carry on the contest for any length of time, the population in those provinces which must supply the funds to sustain the armies in the field would still rise against their rulers, hoping that, by so doing, they might, by negociating with the enemy, at the same time put an end to the war and stop the squeezes which deprive them of the very means of subsistence.

The news which has come from Foochow today (and when I say "news" I do not mean mere rumors, but private and reliable information,) is that

the provincial authorities are so incensed at the blow they have received in Formosa, that they are preparing day and night for the impending contest with Japan. The Tartar General, Wang, who commands the troops, and who is an intimate friend of mine, probably exaggerating the importance of securing my services to China, on hearing that his proposition to me had met with no favor asked a leave of absence of two months from the first of July, on plea of sickness, hoping that by the end of August, those who act for him ad interim will be made responsible for whatever may go wrong.

From the foregoing it is seen to be seen that Japan has nothing to gain by delay, which the Chinese are doing all they can to obtain by showing an apparent disposition to treat, while in reality they are simply trying to gain time, to get ready for any emergency that may arise. It is now, I believe, the policy of Japan to require the immediate settlement, one way or the other, of the Formosa matter, and act promptly and in such a manner as may be dictated by the reply received.

The telegraphic despatch signed Okuma, Tokio, to which I have alluded in my telegram

No 2, directing me to proceed to Shanghai and report to Mr. Okubo there, was the first hint I had that the plan of action was changed from the one we had laid down in Tokei. It led me to suppose that the government apprehended that Enomoto might meet with some opposition on the part of the American authorities in Tsuh-kyen. So I had quite made up my mind what I should do in case such opposition were made, and when the marshal of the U.S. Consulate came to serve upon me a warrant of arrest, I told him that I had determined that I would yield only to force. The marshal reported

my reply to the Consul, who then called upon me in person. I was absent. He then had a force of marines landed from the U. S. S. "Yantic", and I allowed myself to be arrested by the officer in command of the squad. I accepted the proposition made by the Consul that I should be released on bond, not so much because of my desire to avoid going to gaol as to obtain facilities to freely correspond with You, and attend to whatever duties might devolve upon me. My telegrams, informing you of this event you have doubtless received. In them I stated that, in contempt of all known law, the charge upon which I was arrested was not mentioned in

the warrant. When brought into court, I asked what charges were made against me, and received the reply that I had been arrested by order of the minister. The next morning I again appeared in court and read the protest, copy of which I beg to enclose. The Consul then read me a lengthy document, wherein it was stated in substance that I was arrested by special order of the minister, who, from information received through the Chinese, charged me with giving aid to the Japanese Government in carrying on war against China. At the same time he plainly stated to me that it would be useless for me to show any

documents or produce any arguments tending to prove my innocence; that the court had decided to hold me for trial, and that anything I might say to show cause why this should not be done, would be of no avail. I still made the attempt to dispute the authority of the court, but, smilingly, he stopped me, repeating that anything I might say would be useless. He, however, proposed to release me on bond of appearance, to be given by five sureties, the penalty for each being twenty five thousand dollars, the whole amounting to the enormous sum of one hundred and twenty five thousand dollars. Has he named a sum a very little

larger than this, it would have been perfectly useless attempting to find it in Amoy. However, in less than an hour, the bond was furnished, the sureties being the representatives of the leading mercantile houses in the place, both English and American. For this mark of sympathy and friendship towards both Japan and myself we can not be too grateful; and I beg to furnish you, in this despatch, with the names of the Gentlemen who, in this great affliction, have so kindly assisted me. They are N. B. Stevens Esq (American) who escorted me to the court, and who, on hearing of the difficulty, went to Amoy to procure the sureties; John Middleton Esq. (American)

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who offered, in case it should be acceptable, to furnish the whole security himself; J.C. Wardlaw Esq. (English), in whose house I am residing; Edmund Pye Esq (English) of Messrs. Eales + Co; and Robert Craig Esq. (also English).

Being anxious to get in Shanghai in compliance with your directions, as soon as I was set at liberty I suggested to the Consul the propriety of allowing me to go to Shanghai where I could obtain the benefit of legal advice, which cannot be procured here. In compliance with my request he at once telegraphed to Shanghai. I also I also telegraphed to the Consul General, and copy of my ~~telegram~~ is enclosed.) Up to this hour we

have received no reply. I have decided to keep the "Guiko Maru" in port until tomorrow; and if I receive a favorable reply, I will at once proceed in her to Shanghai.

It is very evident to me that, in the present emergency, the only thing for the Japanese government to do is to direct Mr. Bissonade to prepare a careful protest, to be addressed to the American government in Washington, wherein the injustice and illegality of my arrest shall be clearly demonstrated, and all the redress to which the Japanese government is entitled firmly demanded. Mr. Fish, the Secretary of State, may not be disposed to act as fairly in this matter as he might; but the people of

America are; and the Secretary will think twice before giving an unjust decision in the matter - especially so, if the Japanese take a decided stand. Copy of the protest should be sent to Mr. Williams, U.S. Chargé d'affaires at Peking, through Mr. Yamiguwara. And when the American minister to China arrives at Yokohama on his way to Peking, a plain statement of the case should be laid before him, that he may see the matter in its true light. I also think that while he is in Japan it would be good policy to show him some attention, of which he would entertain a pleasant recollection after his arrival in China

where he will certainly meet with none.

If I can only reach Shanghai and have the case brought before the court there by an able legal adviser, I have no doubt that it will be decided in my favor. The charge made against me being that I have aided Japan in making war against China, since no war has yet been declared between the two countries, and considering the fact that I came here on a mission of peace, that from the time I left Yokohama until my arrival here I have spoken to no one about Formosa or the operations that are being carried on there, and that the only connection

I have had with the Formosa mission was while I was in Japan, an offence, if any, for which I cannot be made responsible in China, the case cannot fail to be dismissed by the court. At all events, the fact that I have my liberty here enables me to render the Government some assistance; and if the American authorities would but leave me alone, I am ready to forfeit all the protection that they could give me. If I can in this way aid Your Excellency or Mr. Okubo in carrying out the great plans you have in view, it will be enough to make me forget all the annoyances and troubles I have had

with during the past six months.

Hoping that my proceedings will meet with the approval of Your Excellency's Government,

I have the honor to be

Your Excellency's

Most Obedient Humble Servant,

Chas. W. LeGendre

His Excellency

Okuma Shigenobu,

Minister of Colonization,

&c. &c. &c.

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Protest entered in the Consular Court of Amoy, on the occasion of my arrest by the Judge of said Court on the 6th day of August, 1874.

Selected by the Government of Japan to come to Southern China and represent it there on a mission of peace as its special Commissioner, I solemnly protest against the violence used towards me by the authorities of the United States at Amoy in depriving me of my liberty and, forcibly and against my will, bringing me before them in virtue of a warrant, in which, in violation of all principles of law, no mention of the offence or crime of which I must

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necessarily be accused is made.

My quality as United States citizen, and my connection as such with the Japanese Government while the latter is engaged in carrying out a scheme of pacification within the boundaries of aboriginal Formosa, cannot be invoked (as it may ultimately be) by the United States authorities in justification of their act. For the very nature of the duties which I have come here to perform entitles me to certain privileges and immunities which both China and Western powers are bound to respect; and by depriving me of my liberty while thus vested with this character, this court has committed towards Japan an unfriendly act which

that country can not fail to resent, and which, in the course of time, the United States, in their well known policy of justice, will certainly regret.

While, as a public officer of Japan, I turn my eyes towards the United States and protest against the wrong which I am now made to suffer, and for which I claim redress, as a citizen of these same United States, I feel deeply grieved for the error which I believe has been committed here by this court. This error is the more apparent when we come to consider the different circumstances under which the American authorities might have been placed in their relations with me, in my double capacity of Japanese offic

and United States citizen. I will suppose the worse case, that is, that the late action of Japan in aboriginal Formosa constituted an act of war against China, or, as some have called it, a war without declaration.

It must be remembered that I was engaged by the Japanese Government long before the Formosa mission started. Now the treaty of 1858 between the United States and Japan says that Japan shall have the right to engage in the United States * * * naval and military men * * * to enter its service * * * Provided that "such persons shall not be engaged to act in a naval or "military capacity while Japan "shall be at war with any power

"in amity with the United States"; and I do not think that this proviso prohibits Japan from employing American citizens to act in a naval or military capacity, who have been engaged before Japan went to war. Neither does the act of Congress passed April 20, 1818, commonly called the "Neutrality Law"; for when I accepted my present task under the Japanese Government, I was without the jurisdiction of the United States.

Now we come to the act of 1860. In passing this act, the object of Congress was to arm the ministers and consuls of the United States in China, Japan and Siam with certain powers that would enable them to carry

into effect the treaties with those powers, for which purpose previous jurisdiction was insufficient. It provides that "it shall be competent for each of the said ministers to issue all manner of writs to prevent the citizens "of the United States from enlisting "in the military or naval service "of either of the said countries "to make war upon any power "with whom the United States "are at peace, or in the services "of one portion of the people "against any other portion of the "same people; and he may carry "out this power by a resort to "such force as may at the "time be within his reach, be- "longing to the United States."

However stringent this law

may appear at first sight, it can have but very little bearing upon the case at issue. It is, it is true, a law of the United States, binding, so far as it goes, upon all American citizens. But the treaty of 1858 between Japan and the United States is also a law of the United States. Mr. Wheaton says: "Under the constitution of "the United States, by which treaties made and ratified by the President, with the advice and consent of "the Senate, are declared to be "the supreme law of the land. "It seems to be understood that "the Congress is bound to redeem "the national faith thus pledged, "and to pass the laws necessary "to carry the law into effect." [Wheaton's International Law, § 226 page 339.]

Now we have seen that, by the terms of the treaty of 1868 between Japan and the United States, persons who retain the character of citizens of the United States and are in the service of Japan, may, without blame to themselves or Japan, serve that country in a war begun after entering the service. If so, how could Congress, which was bound, under the constitution, to legislate for the purpose of carrying into effect the terms of the treaty, pass a law that would virtually set at naught the provisions of this same treaty. In vain would we argue that the law of 1860 applies to United States citizens, and not to Japan. It is beyond question that Japan can claim

certain privileges from the United States under the terms of the treaty of 1868. If, by depriving United States citizens of a certain proportion of their liberty in their relations with Japan and her people, either, or both, are debarred from enjoying these privileges, and if the enactment of the law of 1860 is the means of doing this, I am that the law of 1860 never could have been understood by the framers thereof to apply to Japan, and that it was never intended that it should. Now we must not forget that the law of 1860 was framed chiefly because some American adventurers, notably Ward and Burgevine, had taken an active part in the troubles between the Chinese Government and the

Tai Ping rebels, Burgevine having given his aid in turn to both sides. Congress was anxious to prevent by legislation the recurrence of such proceedings, not only in China, but in all the countries where it was likely they might again take place; and to prevent all possible transgression of the laws, this body extended the prohibition from enlisting in the armies of contending parties in cases of civil wars among those nations, to entering the army or navy of either of those countries while at war with some power with whom the United States have treaties of peace and amity. In what relates to China or Siam, neither of which has such a clause in her treaty

as the one referred to above, this law can be carried out; but it cannot be legally enforced in the case of Japan. It could be, however, were the law to be embodied in a new treaty; but it has not been so embodied; and until it has been, it cannot affect or modify the treaty of 1855, without the express consent of Japan in every case. In the present case we must infer that this consent has not been given from the fact that, contrary to the stipulations of the law of 1860, but in accordance with the terms of the treaty of 1858, an American was engaged by the Government of Japan to serve in connection with the Formosa mission,

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previous to a declaration of war against either the aborigines of the island or the Chinese Empire; and the provisions of this same treaty can be invoked by both Japan and the citizens of the United States in justification of their acts in all the courts where the laws of the United States are enforced.

Amoy, August 7th, 1874.

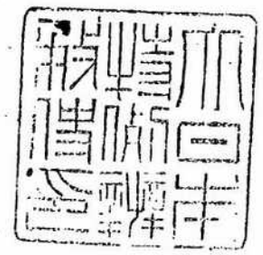
(signed) Chas W. LeGendre.

With Despatch No. 2, Dated Aug. 9th, 1874.

No 3. Amoy, August 9th, 1874.

Your Excellency,

I have the honor to acknowledge the receipt of your despatch of the 20th day, 7th month, 7th year of Meiji. In reply thereto, I beg to furnish you herewith with a copy of the impression asked for.



I have the honor to be
Your Excellency's
Most Obedient humble Servant,
Chas W LeGendre

His Excellency
Okuma Shigenobu,
Minister of Finance,
&c. &c. &c.

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